

Smt. Abha Arora vs Angela Sharma And Anr. on 18 May, 2007

Equivalent citations: 148(2008)DLT506, 1(2008)DMC507

Author: Sanjay Kishan Kaul

Bench: Sanjay Kishan Kaul

JUDGMENT

Sanjay Kishan Kaul, J.

1. The plaintiff was the absolute owner of the property bearing No. F-18 Geetanjali Enclave, New Delhi pursuant to a perpetual sub lease dated 16.12.1970. The present suit for was filed by the plaintiff seeking a permanent and mandatory injunction against the defendants to restrain them from entering the suit property and to direct defendant No. 1 to permanently quit the suit property.
2. Defendant No. 2 is the son of the plaintiff and defendant No. 1 is her daughter in law and the present suit is a result of souring of relations between the plaintiff and her daughter in law. The dispute is really one between the plaintiff and defendant No. 1.
3. Issues in the suit were framed on 06.03.2007 and the matter was set down for trial. Defendant No. 1 was restrained from entering the suit property by an ad interim order dated 05.12.2006 and the application for setting aside the same was dismissed on 10.01.2007. An appeal was filed against the said order which was disposed of by a division bench of this Court on 19.03.2007 with the direction to appear before this Court to pursue the suit in accordance with law as the counsel for respondent No. 1 (plaintiff herein) stated that the suit property had been sold and the appeal had thus become infructuous. The suit property is stated to have been sold vide a sale deed executed and registered in favor of the purchaser on 11.03.2007.
4. On 16.04.2007, learned Counsel for the plaintiff stated that he has obtained instructions to unconditionally withdraw the present suit. Learned senior counsel for defendant No. 1 however had objections to the same. I heard learned Counsels for the parties on 20.04.2007 and 03.05.2007.
5. The basic plea of the plaintiff is that a plaintiff has an unconditional right to withdraw a suit under the provisions of Order 23 Rule 1(1) of the Code of Civil Procedure 1908 (hereinafter referred to as the said code) and cannot be compelled at the instance of the defendant to continue with the suit. Defendant No. 1 on the other hand has taken the stand that she has a right of possession by virtue of the factum of possession as well as by reason of her right of possession being implicit in the right to maintenance and thus the plaintiff cannot be considered wholly dominus liti and permitted to withdraw the suit.

6. Learned senior counsel for the plaintiff submitted that well prior to the commencement of the litigation, the plaintiff had definite plans to sell the property in question and purchase smaller residential accommodation. This fact was brought to the notice of the court at the very outset. In this regard, learned Counsel drew the attention of the court to para 17 of the plaint wherein it has been stated that the plaintiff has definite plans to sell the property and take a smaller apartment and keep the proceeds for meeting her old age needs and security.

7. Learned senior counsel averred that defendant No. 1 had forcibly entered the house and occupied one room therein and thereafter filed a suit seeking an injunction against the plaintiff claiming protection of her right to residence in the matrimonial home under inter alia the Protection of Women from Domestic Violence Act, 2005 (for short the 'PWDV Act'). It is submitted that no interim relief was obtained in that suit and the suit itself has been dismissed in default.

8. Learned senior counsel for the plaintiff contended that under the provisions of Sub rule (1) of Rule 1 of Order 23 of the said code, a plaintiff has an absolute right of withdrawal or abandonment and cannot be compelled to proceed with the suit at the instance of defendant No. 1 who contends that she may be able to establish a personal right arising out of her status as a wife particularly because she has abandoned her independent suit to claim the rights asserted.

9. In support of his plea learned senior counsel placed reliance on the judgment of a learned single judge of this Court in Wig Brothers (Builders and Engineers) Ltd v. Punjab National Bank and Anr. wherein the court has drawn a distinction between a plaintiff's right to unconditionally withdraw a suit and granting of permission to withdraw a suit with liberty to file a fresh suit. Order 23 Rule 1 (1) confers an absolute right of withdrawal or abandonment which is not the same as withdrawal with the liberty to file afresh on the same cause of action, as provided under Order 23 Rule 1 (3) of the said code. If the suit is sought to be withdrawn under Rule 1 (1), the plaintiff cannot be compelled to proceed with the suit except when there is a counter claim etc. In this case, the court had referred to the decision of the Apex Court in M/s Hulas Rail Baij Nath v. Firm K. B. Bass and Co . In this case, it was observed that the language of Order 23 Rule (1) Sub rule (1) of the said code gives an unqualified right to the plaintiff to withdraw from a suit and if no permission to file a fresh suit is sought under Sub rule (2) of that rule, the plaintiff becomes liable for such costs as the court may award and becomes precluded from instituting any fresh suit in respect of that subject matter under Sub-rule 3 of that rule. There is no provision in the said code which requires the court to refuse permission to withdraw the suit in such circumstances and to compel the plaintiff to proceed with it. Different considerations may arise where a set off may have been claimed or a counter claim may have been filed if permissible by the procedural law applicable to the proceedings governing the suit.

10. A reference was also made to the judgment of the Apex Court in K.S Bhoopathy v. Kokila wherein at para 13 it has been observed that on principle an application by a plaintiff under Sub-rule (3) cannot be treated on a par with an application by him in exercise of the absolute liberty given to him under Sub-rule (1). In the former it is actually a prayer for concession from the court after satisfying the court regarding existence of the circumstances justifying the grant of such concession. No doubt, the grant of leave envisaged in Sub-rule (3) of Rule 1 is at the discretion of the court but such discretion is to be exercised by the court with caution and circumspection.

11. Learned senior counsel for the plaintiff thus sought to highlight the distinction between unconditional withdrawal/abandonment of a suit as envisaged in Order 23 Rule 1 (1) and withdrawal of a suit with the permission of the court with liberty to file a fresh suit as provided for under Order 23 rule 1 (3) of the said code to contend that what is being sought is unconditional withdrawal and not withdrawal with leave to file a fresh suit.

12. On the other hand, learned senior counsel for defendant No. 1 submitted that the said code in permitting abandonment of a claim applies the principle *invito beneficium non datur* which means law confers upon a man no rights or benefits which he does not desire. In support of his plea, learned senior counsel referred to Mulla "The Code of Civil Procedure" (16th Edition Vol. III) wherein it has been observed as under

2. PRINCIPLES OF O. 23, R 1 The principle underlying O 23, r 1, is that the law confers no right which a person does not desire. Though based on public policy, it is distinct from *res judicata*.

The principle underlying the provision for withdrawal and abandonment is, that law confers upon a man no rights or benefits which he does not desire-*Invitio beneficium non datur*. The second suit after the withdrawal of the first suit without seeking permission to file a fresh suit) is barred, not because of the principle of *res judicata* (because there has been no adjudication), but because, whoever waives, abandons or disclaims a right will lose it. However, where the second suit is instituted before the withdrawal of the first suit, permission obtained in the first suit with regard to institution of the second suit is not hit by *res judicata*.

13. It was submitted that Order 23 Rule 1 merely permits one to abandon a benefit and cannot be enlarged to defeat a right in another and envisages a situation where a right exists without there being a competing right. In this behalf, learned senior counsel referred to the judgment of a division bench of the Madras High Court in *Seethai Achi v. Meyappa Chettiar and Ors.* wherein it has been observed that while ordinarily the court finds no impediment to the dismissal of a suit on the announcement of withdrawal of the claim and may dismiss the same as withdrawn, several exceptions have been recognized to this rule. The exceptions discussed in the said judgment include partition suits where a preliminary decree has been passed declaring and defining the shares of the parties as in such a case the rights declared in favor of the defendants would be rendered nugatory. Another example is of in partnership suits where the defendants may also be entitled to some reliefs in their favor as a result of the settlement of accounts. In suits for specific performance and administration, withdrawal may not necessarily lead to dismissal of the suit. In a representative suit, withdrawal by the plaintiff may not lead to dismissal of the suit but to the substitution of the plaintiff or transposing of a defendant as a plaintiff.

14. Learned senior counsel further relied on the judgment of the Supreme court in *R Ramamurthi Iyer v. Raja V. Rajeshwara Rao*, wherein the Court was dealing with the right of a shareholder who had requested the court to exercise its power under Section 2 of the Partition Act. The question was whether a suit can be withdrawn after acquiring a privilege under the partition Act. It was observed that the true position under Sections 2 and 3 of the Partition Act so far as Order 23 Rule 1 is

concerned must be determined in the light of the rule that in partition suit a defendant seeking a share is in the position of a plaintiff and a plaintiff cannot withdraw without the permission of the defendant.

15. A reference was also made to the judgment of learned single judge of the Madras High Court in Registrar, Manomaniam Sundaranar University v. Suhura Beevi Educational Trust and Ors. in support of the proposition that while liberty may lie with the plaintiff in a suit to withdraw or abandon at any time after the institution of the suit, the whole of the suit or part of his claim, yet it cannot be considered to be so absolute as to permit, encourage or ratify an abuse of the process of the court or a fraud to be played upon the parties as well as the court. The abandonment ought not to be a ruse to get rid of a party but yet get the same relief as prayed for earlier.

16. The decisions in Wig Bros (Builders and engineers) and M/s Hulas Rail Baij Nath cases (supra) show that Order 23 rule 1 allows withdrawal/ abandonment of a suit or part of a claim by a plaintiff and ordinarily the court cannot refuse permission for withdrawal and compel the plaintiff to proceed. However, the same is not without exceptions; some of which are suits for partition where all parties can be plaintiffs or defendants alike or in cases of partnership where defendants may be entitled to some reliefs in their favor. Thus, what would have to be seen in the present matter is whether defendant No. 1, as contended, has some rights in respect of the suit property which would be defeated by withdrawal of the suit.

17. Learned senior counsel for defendant No. 1 submitted that the right of defendant No. 1 that would be prejudiced by the withdrawal of the present suit is the right of possession of the said defendant which she has by virtue of the factum of possession admitted by the plaintiff as also her right by virtue of her right to maintenance. In this behalf, learned senior counsel referred to the provisions of Section 18 of the Hindu Adoption and Maintenance Act, 1956 to contend that the said provision entitles a wife to live separately from her husband without forfeiting her claim to maintenance where he treats her with cruelty as to cause reasonable apprehension of it being harmful or injurious to live with him. It was thus submitted that a Hindu wife can stay with her in laws away from her husband in exercise of her right to maintenance. The said provision is as under:

18. Maintenance of wife. (1) Subject to the provisions of this section, a Hindu wife, whether married before or after the commencement of this Act, shall be entitled to be maintained by her husband during her life time.

(2) A Hindu wife shall be entitled to live separately from her husband without forfeiting her claim to maintenance,-

(a) if he is guilty of desertion, that is to say, of abandoning her without reasonable cause and without her consent or against her wish, or of willfully neglecting her;

(b) if he has treated her with such cruelty as to cause a reasonable apprehension in her mind that it will be harmful or injurious to live with her husband;

(c) if he is suffering from a virulent form of leprosy;

(d) if he has any other wife living;

(e) if he keeps a concubine in the same house in which his wife is living or habitually resides with a concubine else-where;

(f) if he has ceased to be a Hindu by conversion to another religion ;

(g) if there is any other cause justifying her living separately, ...

18. Learned senior counsel averred that defendant No. 1 could have availed of the remedies available to her under the PWDV Act which will be frustrated by the plaintiff by withdrawal of the proceedings. Learned Senior Counsel referred to the provisions of the PWDV Act to contend that the suit property is a shared household as defined under the PWDV Act and thus, defendant No. 1 has a right to reside in the same. Sections 2(f) and 2 (s) of the PWDV Act read as under:

2. Definitions ...

(f) "domestic relationship" means a relationship between two persons who live or have, at any point of time, lived together in a shared household, when they are related by consanguinity, marriage, or through a relationship in the nature of marriage, adoption or are family members living together as a joint family;

...

(s) "shared household" means a household where the person aggrieved lives or at any stage has lived in a domestic relationship either singly or along with the respondent and includes such a household whether owned or tenanted either jointly by the aggrieved person and the respondent, or owned or tenanted by either of them in respect of which either the aggrieved person or the respondent or both jointly or singly have any right, title, interest or equity and includes such a household which may belong to the joint family of which the respondent is a member, irrespective of whether the respondent or the aggrieved person has any right, title or interest in the shared household;

...

19. Learned senior counsel for defendant No. 1 also drew the attention of the court to the provisions of Section 36 of the PWDV Act to contend that the provisions of the PWDV Act are in addition to the provisions of any other law in force. The said provision is as under:

36. Act not in derogation of any other law.- The provisions of this Act shall be in addition to, and not in derogation of the provisions of any other law, for the time being in force.

20. Learned senior counsel for the plaintiff submitted that defendant No. 1 can claim to have a right of residence only against her husband and in property which belongs to her husband, is taken on rent by her husband or is a joint family property in which her husband is a co-sharer. Learned senior counsel drew the attention of this Court to the decision of the Apex Court in S.R. Batra and Anr. v. Smt Taruna Batra wherein it was observed that there is no such law in India like the British Matrimonial Homes Act, 1967 and in any case, the rights which may be available under any law can only be as against the husband and not against the father in law or mother in law. In that case, the house belonged to the mother in law. The respondent in that case relied upon the provisions of the PWDV Act to contend that in view of the provisions of that Act, the respondent cannot be disposed from the second floor of the property. It was found that Smt. Taruna Batra was not residing in the house in question and also that the house in question could not be said to be a shared household under the provisions of the PWDV Act. The contention of the respondent that 'shared household' includes a household where the aggrieved person lives or may have lived at any stage in a domestic relationship was not accepted. It was held that the wife is only entitled to claim a right of residence in a shared household and a shared household would mean only a house belonging to or taken on rent by the husband or the house which belongs to the joint family of which the husband is a member.

21. In support of his contentions learned senior counsel also relied on the judgment of a division bench of this Court in Indian Airlines v. Union of India and Ors. 128 (2006) DLT 505 (DB). The court observed in this case that the court cannot declare law laid down by the Supreme Court as per incuriam or take a contrary view on the ground that the Supreme Court has failed to deal with certain aspects or some relevant provisions of law were not brought to its notice.

22. The decision in S.R. Batra and Anr's case (supra) shows that under the provisions of the PWDV Act, a woman on account of her status as wife is entitled to claim a right to residence in a shared household which would mean a house which belongs to her husband or which is taken on rent by her husband or a house which belongs to a joint family of which her husband is a member. Under the PWDV Act, in case of a finding of domestic violence, a residence order can be passed inter alia, restraining the respondent from alienating or disposing of the shared household or securing the same level of alternative accommodation enjoyed by the aggrieved person in a shared household. Such order is also in respect of a shared household. Also even the claim for alternative accommodation can be made only against the husband and not against the in laws or other relatives. Learned senior counsel for defendant No. 1 sought to distinguish the judgment in S.R. Batra and Anr's case supra by contending that in the present case defendant No. 1 was residing in the suit property and was occupying a portion of the suit property being a room while in S.R. Batra and Anr's case the respondent daughter in law was admittedly not residing in the suit property. In this behalf, learned senior counsel referred to the written statement filed by defendant No. 1 wherein at para xxxvii it has been averred that both the defendants resided at the suit property since their marriage.

23. It cannot be lost sight of that in the present case; the property in question is stated to be owned by the plaintiff. This is not really disputed by defendant No. 1 who, in her written statement has taken the stand that the property was owned by the parents of defendant No. 2. Defendant No. 1 was

not residing in the suit property on a permanent/regular basis. A perusal of the written statement filed by defendant No. 1 shows that the said defendant was residing and working in the United Kingdom and visited India periodically for short periods of time. In fact defendant No. 1 is a British Citizen. Thus, the contention of learned senior counsel for defendant No. 1 in this behalf cannot be accepted as such.

24. As noticed in the order dated 10.01.2007, defendant No. 1 even in India was working and had a salary of Rs. 15 lacs per annum. Although a claim of termination of employment was made, nothing in support of the same was placed on record.

25. Defendant No. 2, the husband of defendant No. 1, as noticed in the orders dated 05.12.2006 and 10.01.2007 is not residing in the suit property. In view of the decision in S.R. Batra and Anr's case (supra), defendant No. 1 can claim a right of residence with respect to a shared household which would mean only a house belonging to or taken on rent by her husband or belonging to a joint family of which her husband is a member. This is not the case in so far as the suit property is concerned as defendant no 2 was not living in the suit property and is not the owner of the suit property. The suit property thus cannot be said to fall within the meaning of the expression 'shared household'. The provisions of the PWDV Act show that even an order restraining the respondent from alienating or disposing of or disturbing possession can be made only in respect of a shared household and as observed in S.R. Batra and Anr's case (supra), even a claim for alternative accommodation can be made only against the husband and not against the in laws or other relatives.

26. It may also be noticed that the suit filed by defendant No. 1 inter alia against defendant No. 2 and the plaintiff for permanent and mandatory injunction is stated to have been dismissed in default.

27. Section 18 of the Hindu Adoption and Maintenance Act, 1956, relied on by learned senior counsel for defendant No. 1 provides right to a Hindu wife to claim maintenance from her husband during her lifetime and also entitles her to live separately from her husband in certain circumstances without forfeiting her right to maintenance. The Hindu Adoption and Maintenance Act, 1956 does not entitle a wife to claim maintenance from her in laws or other relatives of the husband during the lifetime of the husband. The provisions relied on by defendant No. 1 thus entitle her to claim maintenance from her husband even if residing separately from him. However, the provisions of the Hindu Adoption and Maintenance Act, 1956 do not support the claim of defendant No. 1 against her in laws.

28. Thus, defendant No. 1 really cannot claim a right of residence in the suit property as the same is not a 'shared household' as defined by the PWDV Act and is owned by the plaintiff who is her mother in law. Any claims for residence or maintenance by the said defendant can only be made against her husband.

Doctrine of Lis pendens

29. Learned senior counsel for defendant No. 1 submitted that the withdrawal is liable to be opposed on the principle of *lis pendens* under Section 52 of the Transfer of Property Act, 1882 as the withdrawal sought is intended to circumvent the jurisdiction of the court and to remove the subject matter of litigation from the ambit of the courts power and frustrate its decree. In this regard, reliance was placed on the decision of the Apex Court in *Rajender Singh v. Santa Singh*. The court observed in this case that the whole object of the doctrine of *lis pendens* is to subject parties to litigation as well as others, who seek to acquire rights in immovable property, which are the subject matter of a litigation, to the power and jurisdiction of the court so as to prevent the object of the pending action from being defeated.

30. Learned Counsel also relied on the decision in *Bellamy v. Sabine* (1857) 44 ER 842 wherein it was observed as under:

It is scarcely correct to speak of *lis pendens* as affecting a purchaser through the doctrine of notice, though undoubtedly the language of the court often so describes its operation. It affects him not because it amounts to notice, but because the law does not allow litigant parties to give to others, pending litigation, rights to a property in dispute, so as to prejudice the opposite party. Where a litigation is pending between a plaintiff and a defendant as to the right to a particular estate, the necessities of mankind require that the decision of the court in the suit shall be binding not only on the litigant parties but also on those who derive title under them by alienations made pending the suit, whether such alienees had or had not notice of the pending proceedings. If this were not so, there could be no certainty that the litigation would ever come to an end. A mortgage or sale made before the final decree to a person who had no notice of the pending proceedings would always render a new suit necessary and so interminable litigation might be the consequence.

This observation has been referred to in the judgment of a learned single judge of the High Court of Punjab in *Simla Banking and Industrial Co. Ltd. v. Firm Luddar Mal Khushi Ram and Ors.* .

31. Learned senior counsel for defendant No. 1 contended that if transfer *pendente lite* is subject to the outcome of the proceedings, abandonment of a claim cannot be permitted as it would amount to doing indirectly what cannot be done directly. The abandonment would take the transferee outside the jurisdiction of the court. This would amount to misusing the courts process which is contempt of court.

32. Learned senior counsel for the plaintiff however contended that Section 52 of the Transfer of Property Act applies and operates only where any right to immovable property is directly and specifically in question in a suit or a decree or order is ultimately passed. It was contended that defendant No. 1 is not claiming any right to immoveable property but is claiming only a personal right arising out of the incidence of matrimony and her status as wife which personal right cannot survive and be enforceable against the transferee. In support of this contention, reference was made to the judgment of the Supreme Court in *Hukum Chand v. Om Chand and Ors.* wherein it has been

observed that transfer of the interest does not stop the progress of the suit and the only exception is when the transfer of property forming the subject matter of the suit, pendente lite, results in wiping out the cause of action itself or deprives the transferee of the right to decree, such as where the cause of action was personal to the plaintiff. Otherwise the transferee steps in the shoes of his predecessor in interest and remains bound by the result of the suit.

33. It was further contended that Section 52 does not place any fetter on the right of the plaintiff to unconditionally withdraw the suit.

34. It is not disputed that ordinarily, the transfer of the interest does not stop the progress of the suit. Where a litigation is pending as regards rights in any immovable property and the same is transferred pendente lite, the decision is binding on the transferee. However, as observed by the Supreme Court in Hukum Chand's case (supra) an exception to this is when the transfer of property forming the subject matter of the suit, pendente lite, results in wiping out the cause of action itself or deprives the transferee of the right to decree, such as where the cause of action was personal to the plaintiff.

35. In the present case, what is being claimed by defendant No. 1 is the right to residence in the suit property by reason of being the wife of defendant No. 2 and not any interest in the suit property as such. This plea has been raised by defendant No. 1 only as a defense to the suit filed by the plaintiff and as noticed hereinabove, defendant No. 1 has allowed the suit filed by her inter alia against the plaintiff to be dismissed in default.

36. The relief claimed by the plaintiff in the present suit is inter alia for a permanent and mandatory injunction to restrain the defendants from entering the suit property. As the property in itself question has been sold, the plaintiff cannot really claim the said relief with regard to the suit property. Also, defendant No. 1 is not claiming any interest in the suit property itself and cannot claim any relief against the purchasers. There is thus, no merit in the plea of defendant No. 1.

Fraud

37. Learned senior counsel for defendant No. 1 contended that fraud and collusion have been alleged in the written statement and the abandonment of the suit is a ploy to avoid the case being decided.

38. It was submitted that active proceedings are not necessary for rescission on the ground of fraud or collusion and the same can be avoided even in defense to an action on the decision. In support of his submission, learned senior counsel referred to the judgment of the Apex Court in Gram Panchayat of Village Naulakha v. Ujagar Singh .

39. Learned senior counsel for the plaintiff, in this regard submitted that there is no fraud or collusion in the present matter. The property in question is the stridhan of the plaintiff and neither defendant No. 2 nor defendant No. 1 can claim any right in the same.

40. The contention of learned Counsel for defendant No. 1 that there is fraud and collusion on the part of the plaintiff cannot be accepted as such. The plaintiff had declared her intention to sell the suit property in the plaint itself and there has been no concealment in this behalf on the part of the plaintiff. Defendant No. 1 has taken the stand in the written statement itself that the property belongs to the parents of defendant no 2. No case of fraud is thus really made out against the plaintiff.

Conclusion

41. The aforesaid shows that defendant No. 1 cannot claim a right of residence against the plaintiff in respect of the suit property. The plaintiff is the owner of the property and defendant No. 1 is not claiming any interest in the property as such besides a right of residence. The plaintiff had declared her intention to sell the property in question at the stage of filing the plaint itself. The property in question has been sold and thus nothing really survives for the suit to proceed.

42. Order 23 Rule 1(1) of the said Code entitles a plaintiff to unconditionally withdraw or abandon a suit and ordinarily there is nothing in the said Code which requires the court to refuse permission for the same. The exceptions that have to be taken into consideration are where there is a set off or counter claim or in certain kinds of suits such as for partition, or in partnership suits where the defendants may be entitled to settlement of accounts etc. In the present suit there is no such competing right of defendant No. 1 and the rights being claimed by the said defendant can really be claimed only against her husband and not against the plaintiff. Defendant No. 1 failed to prosecute the suit filed by her which was dismissed in default.

43. I thus see no reason for preventing the plaintiff from withdrawing and compelling her to proceed with the present suit.

44. The suit is dismissed as withdrawn leaving parties to bear their own costs.